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Case Number: 26PSCV00202 Hearing Date: September 9, 2026 Dept: G

Plaintiff Anthony Hernandez’s Motion for Reasonably
Incurred Costs, Expenses, and Attorney’s Fees

Respondent:
Defendant General Motors LLC

TENTATIVE
RULING

Plaintiff
Anthony Hernandez’s Motion for Reasonably Incurred Costs, Expenses, and
Attorney’s Fees is GRANTED in a reduced amount.
Plaintiff Anthony Hernandez is AWARDED a total of $7,999.18.

BACKGROUND

This
is a Song-Beverly action arising out of the lease of an allegedly defective
motor vehicle. On April 24, 2024,
plaintiff Anthony Hernandez (Hernandez) leased a truck manufactured by
defendant General Motors LLC (GM).

On January
20, 2026, Hernandez filed the Complaint, alleging causes of action for (1) breach
of the implied warranty of merchantability and (2) breach of express warranty.

On
July 13, 2026, Hernandez filed this motion for attorney’s fees and costs. On August 26, 2026, GM filed the opposition,

and on September 1, 2026, Hernandez filed the reply.

On July 17, 2026, Hernandez informed the court that the parties settled the case.

The motion is set for hearing on September 9, 2026.

ANALYSIS

Hernandez moves for an award of attorney's fees and costs in the amount of $9,641.48. For the following reasons, the motion for attorney's fees is GRANTED in the reduced amount of $7,999.18.

Legal Standard

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) "[T]he negotiation of a possible settlement does not excuse the failure to proceed with due diligence in the filing of pleadings, absent some understanding that pleadings need not be filed while negotiations are in process." (Turley v. Turley (1967) 254 Cal.App.2d 169, 173.) In the context of an award of attorneys' fees "the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys' fee application, and in the court's fee award." (Serrano v. Unruh (1982) 32 Cal.3d 621, 631.) "[I]t is inappropriate and an abuse of a trial court's discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff's damages or recovery in a Song-Beverly Act action." (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 510.)

In assessing attorney's fees under the Song-Beverly Act, a trial court must make an "initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 817.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "The reasonable hourly rate is that prevailing in the community for similar work." (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) "Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust." (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

"[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorneys' fees award.) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Mountjoy v. Bank of America (2016) 245 Cal.App.4th 266, 271.) "[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable." (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) "[A]n award of attorney fees may be based on counsel's declarations, without production of detailed time records." (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) "[P]aralegal fees may be awarded as attorney's fees if the trial court deems it appropriate. . . ." (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where a party is challenging the reasonableness of attorney's fees as excessive that party must "attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) "[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Id. at 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Ibid.)

A "court should defer to the winning lawyer's professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker." (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel's hourly rates, the court will deem an attorney's hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

As the prevailing party, the court finds Hernandez is entitled to attorney's fees and costs. To decide the award, the court considers the reasonableness of the claimed hours, the reasonableness of the rates charged, whether to apply a lodestar multiplier, and the amount of costs and expenses.

Reasonableness of the Claimed Hours

The Song-Beverly Act provides for the recovery of "costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer." (Civ. Code, § 1794, subd. (d).) A verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred." (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) However, counsel bears the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds the tasks unreasonable or unnecessary since "padding in the form of inefficient or duplicative efforts is not subject to compensation." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Hernandez's counsel claims 17.8 hours of legal work. (See Mot., Ibrahim Decl., Exh. B.) The verified fee bill is prima facie evidence of the legal services necessarily incurred. (See Mot., Ibrahim Decl., Exh. B; see also Hadley, supra, 167 Cal.App.3d at 682.) To determine the reasonableness of the claimed hours, the court considers the arguments from GM's opposition.

The court categorizes the challenged billing entries with which GM takes issue as follows: (1) pre-engagement work, (2) excessive time for work using templates, and (3) anticipated time. (See Opp., pp. 2–5.)

Pre-Engagement Work

GM argues a reduction in the attorney's fee award is required for "pre-engagement work" because "initial consultations prior to engagement are business expenses routinely treated as overhead." (Opp., pp. 3–4, capitalization changed.) The court disagrees.

The court must limit the attorney's fee award to only compensate fees "reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) The plain language of Section 1794, subdivision (d) necessarily precludes an award based on work that was not reasonably incurred in the commencement and prosecution of the action.

The court reviewed the specific entries GM challenged and found that they were not routine business expenses that should be characterized as overhead. Instead, Hernandez met counsel on November 12, 2025, during which counsel conducted research and corresponded with GM on Hernandez's behalf until December 22, 2025. (See Mot., Ibrahim Decl., Exh. B.) The court finds that counsel's work and activities went beyond routine business expenses and were completed in anticipation of commencing litigation.

The court also reviewed the specific entries GM challenged as block-billed. The court has the discretion "to penalize [block billing] when the practice prevents them from discerning which tasks are compensable and which are not." (In re Marriage of Nassimi (2016) 3 Cal.App.5th 667, 695–696, cleaned up.) However, the two entries that could be characterized as block-billed encompass communications from November 25, 2025 to December 22, 2025 and add up to 1.9 hours. (See Mot., Ibrahim Decl., Exh. B.) Instead of billing separately for each of these communications, Hernandez's counsel billed these together. Given the nature of the work, the court does not reduce the fee request for these entries.

Thus,

the court declines to reduce the award of attorney's fees for pre-engagement work.

Excessive Time for Work Using Templates

GM argues a reduction in the attorney's fee award is required for the "Templated Complaint" because the time spent on drafting it was "unreasonable." (Opp., pp. 4–5.) The court agrees.

The court does not award attorney's fees if the time billed is excessive for the type of work. (See Civ. Code, § 1794, subd. (d); see also Premier Medical Management Systems, Inc., supra, 163 Cal.App.4th at 564.) The court may reduce an attorney's fee award if "plaintiff's counsel failed to act efficiently." (Mikhaeilpoor, supra, 48 Cal.App.5th at 256.)

The court reviewed the specific entry GM challenged as unreasonable and found that Hernandez's counsel spent excessive time drafting the Complaint given that it was based on a template, and this case did not present novel or complex issues. (See Mot., Ibrahim Decl., Exh. B.) Counsel billed 1.5 hours to draft the Complaint, but the court finds counsel should have drafted the Complaint in 1.0 hour.

Thus, the court reduces the award of attorney's fees for excessive time by 0.5 hours.

Anticipated Time

GM argues a reduction in the attorney's fee award is required for the fee motion because the requested fees are "purely speculative." (Opp., p. 4.) The court agrees.

The

court must base its award of attorney's fees on "actual time expended." (Civ. Code, § 1794, subd. (d).) The plain language of Section 1794, subdivision (d) necessarily precludes an award based on speculative fees.

Here, the motion anticipates 2.5 hours in connection with reviewing the opposition, drafting the reply, and attending the hearing. (See Mot., Ibrahim Decl., Exh. B.) Anticipated fees are speculative and not recoverable as "actual time expended." (Civ. Code, § 1794, subd. (d).)

Thus, the court reduces the award of attorney's fees for anticipated time by 2.5 hours.

Therefore, Hernandez substantiated 14.8 of the 17.8 hours claimed by counsel in this litigation.

Reasonableness of Counsel's Rates

The trial court is the ultimate arbiter of what rates are reasonable. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36, stating, "experienced trial judges are the best judges of the value of professional services rendered in their courts.") To determine if an hourly rate is reasonable, courts consider the rates of similar attorneys in the community as well as "the experience, skill, and reputation of the attorney requesting fees." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Hernandez's counsel requests an hourly rate of $475 in 2025 and $500 in 2026. (See Mot., Ibrahim Decl., ¶ 3.) Counsel's declaration provides an overview of his experience and credentials. (See Mot., Ibrahim Decl., ¶¶ 4–6.) The court considered counsel's declaration and the cited decisions of other courts. (See Mot., Ibrahim Decl., ¶¶ 4–13.) Based on a review of this case compared to other Los Angeles-area counsel in similar lemon law cases, the court finds that the rates charged are unreasonable.

Therefore,
the court declines to adjust counsel's billing rates. The court finds the appropriate award of attorney's fees is $7,245.00 before applying any multiplier.

Lodestar
Multiplier

A
lodestar multiplier is not appropriate.
The factors that courts look at to determine if a multiplier is reasonable are: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum, supra, 24 Cal.4th at 1132.)
"[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases." (Id. at 1138.) When a case is not complicated,
"the request for a multiplier [is] specious."
(Mikhaeilpoor, supra, 48 Cal.App.5th at 255.)

Here,
Hernandez does not request a lodestar multiplier. (See Mot., p. ii.)

Therefore,
it is not reasonable to apply a lodestar multiplier to the award of reasonable attorney's fees of $7,245.00.

Costs
and Expenses

A prevailing plaintiff has a right to recover all
costs and expenses that were reasonably incurred in prosecuting the case. (Civ. Code, § 1794, subd. (d).) Allowable costs must be reasonably necessary
to conduct the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subds. (c)(2)–(c)(3).)

Hernandez's counsel claims $896.48 in costs and expenses. (See Mot., p. 7; see also Mot., Ibrahim Decl., Exh. B.) As a preliminary matter, the court notes that Hernandez did not provide a memorandum of costs because it was not due under California Rules of Court, rule 3.1700(a)(1). (See Reply, p. 5, incorrectly citing the rule as Cal. Rules of Court, rule 3.17; see also Cal. Rules of Court, rule 3.1700(a)(1), requiring a party to file a memorandum of costs after a notice of entry of judgment or dismissal is served.) Although not required before notice of entry of judgment or dismissal, a memorandum of costs is useful to the court to determine whether the costs requested are categorically allowed by Code of Civil Procedure section 1033.5. Even without a memorandum of costs, the court considers the cost invoices and the parties' arguments to determine the reasonableness of the claimed costs. The court categorizes the challenged costs with which GM takes issue: (1) service of process fees, (2) jury fees, and (3) mediation fees. (See Opp., p. 6.)

Service of Process Fees

GM argues a reduction in the cost award is required for the service of process fees because Hernandez served GM via Nationwide. (See Opp., p. 6.) The court agrees.

Fees for service of documents are recoverable costs. (See Code Civ. Proc., § 1033.5, subds. (a)(4), (a)(14).) When service of process is completed by someone other than a public officer or registered process server, "the recoverable cost is the lesser of the sum actually incurred, or the amount allowed to a public officer in this state for that service." (Code Civ. Proc., § 1033.5, subd. (a)(4)(D).) The fee for service process by a public officer is $50.00. (See Gov. Code, §§ 26720.9, 26721.)

GM argues that it should not pay for service of process fees paid to Nationwide because they were "optional and did nothing to advance [the] case." (Opp., p. 6.) However, the court finds that service of GM with process in this action was necessary to conduct this litigation, even though it was competed through Nationwide. (See 1/21/2026 Order to Show Cause Re: Failure to File Proof of Service, pp. 1–2, requiring service of GM to discharge the order to show cause hearing.) Even so, Hernandez does not argue or claim that Nationwide was a public officer or registered process server. (See generally Reply.) Even though Hernandez paid Nationwide $192.30 to serve GM, the Code of Civil Procedure limits the recoverable cost under these circumstances to $50.00. (See Code Civ. Proc., § 1033.5, subd. (a)(4)(D).)

Thus, the court reduces the award of costs for service of process by $142.30.

Jury Fees

GM argues a reduction in the cost award is required for the jury fees because “the case settled without proceeding to trial.” (Opp., p. 6.) The court disagrees.

Jury fees are recoverable costs. (See Code Civ. Proc., § 1033.5, subd. (a)(1).) The court finds that it was reasonable for Hernandez to incur jury fees in anticipation of a jury trial. Thus, the court declines to reduce the award of costs for jury fees.

Mediation Fees

GM argues a reduction in the cost award is required for mediation fees because “[the] case settled prior to mediation.” (Opp., p. 6.) The court disagrees.

Costs not specified by statute are allowable in the court’s discretion, but they must be specifically pleaded. (See Code Civ. Proc., § 1033.5, subd. (c)(4); see also Jones v. Union Bank of Cal. (2005) 127 Cal.App.4th 542, 551 (“Because costs other than those allowed under section 1033.5 are not based on statute, they must be specifically pleaded and proved at trial rather than included in a memorandum of costs.”)

Mediation fees are not included in the non-exhaustive list of allowable costs in Code of Civil Procedure section 1033.5. Nevertheless, the court finds that it was reasonable for Hernandez to incur mediation fees for the cancellation of mediation, especially considering that GM failed to agree to take the scheduled mediation off calendar or respond to the mediator about the cancellation of mediation. (See Reply, p. 5; see also Supp. Ibrahim Decl., Exh. D.) In other words, the parties should not be required to split the mediation cancellation fee when GM could have avoided the fee altogether.

Thus, the court declines to reduce the award of costs for mediation fees.

Therefore, the court finds Hernandez is entitled to $754.18 of the $896.48 claimed in costs and expenses.

Accordingly, the motion for attorney’s fees and costs is GRANTED in the reduced amount of $7,999.18.

CONCLUSION

For these reasons, the motion for reasonably incurred costs, expenses, and attorney’s fees is GRANTED in a reduced amount. Plaintiff Anthony Hernandez is AWARDED a total of $7,999.18.